

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

-----X
CHANDLER DRAKES,

Plaintiff,

-against-

CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, and PO KYLE SLATER #9805 and PO
JEAN EMMANUEL #23815,

Defendants.
-----X

Index No.:
Date Purchased
SUMMONS

Plaintiff designates QUEENS
County as the place of trial.

The basis of venue is:
CPLR 504

To the above-named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Fresh Meadows, New York
September 20, 2024


ELIYAHU LEVI, ESQ.
DANIELLA LEVI & ASSOCIATES, P. C.
Attorneys for Plaintiff(s)
CHANDLER DRAKES
159-16 Union Turnpike, Suite 200
Fresh Meadows, New York 11366
(718) 380-1010

TO:
THE CITY OF NEW YORK
100 Church Street
New York, NY 10007

NEW YORK CITY POLICE DEPARTMENT
1 Police Plaza
New York, NY 10038

PO KYLE SLATER

1 Police Plaza

New York, NY 10038

PO JEAN EMMANUEL

1 Police Plaza

New York, NY 10038

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

Index No.:

-----X
CHANDLER DRAKES,

Plaintiff,

-against-

VERIFIED COMPLAINT

CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, and PO KYLE SLATER #9805 and PO
JEAN EMMANUEL #23815

Defendants.
-----X

Plaintiff, CHANDLER DRAKES by his attorneys, Daniella Levi & Associates P.C.,
complaining of the defendants, respectfully sets forth and alleges as follows:

1. This is a civil rights action seeking monetary damages for CHANDLER DRAKES ("Mr. Drakes") due to excessive force, his false arrest, false imprisonment, and violation of his civil rights under the United States and New York State Constitutions and 42 U.S.C. §1983, in addition to the laws of the State of New York.

2. This action involves an incident which occurred on October 19, 2023 where Mr. Drakes was falsely arrested, and while handcuffed in the back of a patrol car, was elbowed in the nose and mouth, causing severe, serious, permanent injuries and disfigurement requiring reconstruction surgeries.

THE PARTIES AND JURIDISCTION

3. That at all times hereinafter mentioned, and at the commencement of this action, Mr. Drakes was and still is a resident of the State of New York, County of Queens.

4. That at all times herein after mentioned, Defendant City of New York (herein "City") is a municipal corporation within New York State.

5. That pursuant to its Charter, the City has established and maintained the New York Police Department (herein "NYPD") as a constituent department or agency.

6. Defendant Police Officer Kyle Slater #9805 was at all times a relevant duly appointed and acting police officer, employed by the NYPD, and was present at the arrest and used excessive force on Mr. Drakes and he is liable for directly participating as well as for failing to intervene to prevent the acts described herein and he is sued herein in his individual capacity. Defendant Police Officer Jean Emmanuel #23815 was at all times a relevant duly appointed and acting police officer, employed by the NYPD, and was present at the arrest and excessive force incident of Mr. Drakes, and he is liable for directly participating as well as for failing to intervene to prevent the acts described herein and he is sued herein in his individual capacity. (Hereinafter "Officer defendants" collectively).

7. Upon information and belief, at all times herein after mentioned, Defendant City, its agents, servants and employees operated, maintained and controlled the NYPD including all the police officers thereof.

8. Defendant City is liable to Plaintiff for the police officers' common law and Constitutional violations.

9. At all times relevant, defendant police officers were acting as state actors under color of law.

10. Defendant police officers were at all relevant times, agents, servants and/or employees acting within the scope of their employment with the Defendant City.

11. Venue in Queens is appropriate pursuant to CPLR §504(2) as all the relevant events transpired in the City of New York, County of Queens.

12. Jurisdiction is appropriate in this Court as the amount of damages to which the Plaintiff is entitled exceeds the jurisdictional limits of all lower courts.

CONDITIONS PRECEDENT

13. On or about January 8, 2024 Plaintiff filed and served a Notice of Claim that relates to this incident.

14. On or about May 31, 2024 Defendant City conducted a hearing pursuant to General Municipal Law Article 4 Section 50-h.

15. This action is commenced within the applicable statutes of limitations, to wit, within one year and ninety days of the State causes of action having accrued, and within three years of the Constitutional causes of action having accrued.

AS AND FOR A FIRST CAUSE OF ACTION
False Arrest under New York State Law and 42 U.S.C §1983

16. Plaintiff repeats and re-alleges each and every one of the preceding allegations set forth in this Complaint.

17. Defendants subjected Mr. Drakes to false arrest, false imprisonment, and the deprivation of liberty without probable cause.

18. Mr. Drakes was conscious of his confinement.

19. Mr. Drakes did not consent to his confinement.

20. The arrest and imprisonment of Mr. Drakes were not otherwise privileged.

21. The criminal proceedings terminated in Mr. Drake's favor.

22. Mr. Drakes was falsely arrested without reason or probable cause, prosecuted, and wrongfully incarcerated. His claims against the defendants arise out of their conduct, and their agents, servants, and employees, in investigating, detaining, prosecuting, and imprisoning him in connection with the above-mentioned incidents.

23. The City is liable under the principle of *respondeat superior* for the actions of the named individual defendants.

24. The Defendants violated 42 U.S.C §1983 the Fourth and Fourteenth Amendments to the Constitution of the United States by wrongfully and illegally arresting, detaining and imprisoning Mr. Drakes.

25. The wrongful, unjustifiable, and unlawful apprehension, arrest, detention, and

imprisonment of Mr. Drakes were carried out without a valid warrant, without his consent, and without probable cause or reasonable suspicion.

26. At all relevant times, Defendants acted forcibly in apprehending, arresting, and imprisoning Mr. Drakes.

27. As a direct and proximate result of this unlawful conduct, Mr. Drakes sustained the damages hereinbefore alleged.

AS AND FOR A SECOND CAUSE OF ACTION

Assault and Battery

28. Plaintiff repeats and re-alleges each and every one of the preceding allegations set forth in this Complaint.

29. During the course of unlawfully arresting Mr. Drakes, the Officer Defendants touched him without his consent and caused Plaintiff bodily harm.

30. At all relevant times, the Officer Defendants were employees of the NYPD, and thus the City, and were acting for, upon, and in furtherance of the business of their employer and within the scope of their employment.

31. Consequently, the City and NYPD are liable under the doctrine of *respondeat superior* for the tortious actions of the Officer Defendants.

32. Accordingly, Plaintiff is entitled to damages as requested in this Complaint.

AS AND FOR A THIRD CAUSE OF ACTION

Excessive force under New York State Law and 42 U.S.C §1983

33. Plaintiffs repeat and reallege the allegations set forth above.

34. During the course of unlawfully arresting Mr. Drakes, the Officer Defendants used more force than necessary to detain him.

35. During the course of unlawfully arresting Mr. Drakes, the Officer Defendants used an unreasonable amount of force and caused Plaintiff unnecessary physical injuries.

36. At all relevant times, the Officer Defendants were employees of the NYPD, and

thus the City, and were acting for, upon, and in furtherance of the business of their employer and within the scope of their employment.

37. These actions, were all done under color of law, and violated Mr. Drakes's rights under the United States Constitution, particularly the Fourth, Fifth, and Fourteenth Amendments and 42 U.S.C §1983.

38. Consequently, the City and NYPD are liable under the doctrine of *respondeat superior* for the tortious actions of the Officer Defendants.

39. Accordingly, Plaintiff is entitled to damages as requested in this Complaint.

AS AND FOR A FOURTH CAUSE OF ACTION
Negligent Hiring, Retaining, Training, and Supervising

40. Plaintiff repeats and re-alleges each and every one of the preceding allegations set forth in this Complaint.

41. That the defendants, CITY and NYPD, were negligent in hiring, retaining, training and supervising of their agents, servants and/or employees including but not limited to the named Officer defendants.

42. That the defendants, CITY and NYPD were negligent in issuing and permitting Officer defendants, to be employee of the defendants, CITY and NYPD, who were unstable and a danger to the public at large.

43. That the Defendants CITY and NYPD, their agents, servants and/or employees were negligent, careless and reckless in causing, allowing and/or permitting Officer defendants to assault and batter plaintiff. That the defendants, CITY and NYPD, their agents, servants and/or employees knew or should have known of the unruly, vicious, assaultive and dangerous propensity of Officer defendants, that the defendants, CITY and NYPD negligently retained and/or supervised Officer defendants, and failed to discharge them.

44. That the Officer defendants, acting in their capacity as Police Officers, wrongfully,

carelessly and or deliberately assaulted Mr. Drakes.

45. That the defendants, CITY and NYPD, their agents, servants and/or employees, we negligent in continuing to employ as police officers the Officer defendants, with their known instability and propensity for irrational actions; in continuing to employ Officer defendants, who had a prior record and history of unstable, negligent and irrational acts; in continuing to permit Officer defendants, to remain in their positions as a police officers, with the foreseeable consequence of injuring members of the public and in particular Mr. Drakes herein when called upon to perform their duties as a peace officers in the State of New York; in failing to properly examine, supervise and review the conduct of Officer defendants during their employment as New York City Police Officers.

AS AND FOR A FIFTH CAUSE OF ACTION

Negligence

46. The incident as aforescribed resulted from the negligence of the defendants, its agents, servants and/or employees, with no negligence on the part of the plaintiff contributing thereto.

47. The incident resulted from the intentional, wanton, wrongful conduct of the defendants.

48. As a result of the foregoing, plaintiff sustained compensatory damages and exemplary damages in an amount which exceeds the jurisdiction of any lower court.

WHEREFORE, Plaintiff demands judgment against the defendants herein, in a sum exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction, together with the costs and disbursements of this action.

Dated: Fresh Meadows, New York
September 11, 2024

Yours, etc.

A handwritten signature in black ink, appearing to be 'Eliyahu Levi', written over a horizontal line.

ELIYAHU LEVI, ESQ.
DANIELLA LEVI & ASSOCIATES, P. C.
Attorneys for Plaintiff
CHANDLER DRAKES
159-16 Union Turnpike, Suite 200
Fresh Meadows, New York 11366
(718) 380-1010

VERIFICATIONSTATE OF NEW YORK, COUNTY OF Queens SS:Chandler Drakes, being duly sworn, says:

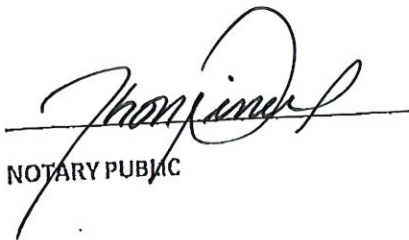
I am a Plaintiff in the action herein: I have read the annexed

SUMMONS & COMPLAINT

And know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my personal files.

Dated: 9/20/2024X C. Rando

Subscribed and sworn to before me

This 20 day of Sept., 2024
NOTARY PUBLIC

Daniella Levi & Associates, P.C.
Attorneys at Law
159-16 Union Turnpike, Suite 200
Fresh Meadows, NY 11366
Telephone: (718) 380-1010
Facsimile: (718) 380-1050

JHON PINEDA
NOTARY PUBLIC, STATE OF NEW YORK
Registration No. 01PI6376201
Qualified in Kings County
Commission Expires June 4, 2026

INDEX NO.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS-----X
CHANDLER DRAKES,

Plaintiff,

-against-

CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, and PO KYLE SLATER #9805 and
PO JEAN EMMANUEL #23815,Defendants.
-----X

SUMMONS & COMPLAINT

DANIELLA LEVI & ASSOCIATES, PC*Attorneys for Plaintiff***CHANDLER DRAKES****159-16 Union Turnpike, Suite 200****Fresh Meadows, New York 11366****(718) 380-1010**

Pursuant to 22NYCRR 130-1.1, the undersigned, an attorney admitted to practice in the Courts of New York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Dated: 9/20/2024Signature: Print Signer's Name: ELIYAHULEVI, ESQ.
